

with a shifting clause in certain events, and the testator gave leaseholds to trustees "upon and for such trusts, intents, and purposes, and with, under and subject to such powers, provisos and directions as, regard being had to the difference in the tenure of the premises respectively, would best and most nearly correspond with the uses, trusts, powers, provisos, and directions in the will declared and contained concerning the freeholds," it was held that the trust as to the leaseholds was executory, and that assuming the shifting clause, if applied verbatim to the leaseholds, to be bad for remoteness, it ought to be so modified as to render it free from that objection (*d*).]

* 23. **Whether joint tenancy in executory trusts in** [*126] **wills to be construed as tenancy in common.** — Again in *wills*, if the words taken in their usual sense would create a *joint tenancy*, the Court has no authority, as it has in articles, to execute the trust by giving a tenancy in common; but, where the testator has shown a desire of providing for his children (*a*), or putting himself *in loco parentis* for his grandchildren (*b*), the Court has adopted the same construction, as in articles: however, in the cases which have occurred, there has always been some accompanying circumstance to denote a tenancy in common, as the estate really intended.

24. **Settlement on a feme "strictly."** — If personalty be directed by a will to be settled on a female "*strictly*," it will be settled upon her (if married) for her sole and separate use without power of anticipation, with a limitation to her absolutely, if she survive her husband, and should she predecease him, then for such intents and purposes as she may by will appoint, and in default of appointment, for her next of kin (*c*).

If a testator bequeath a fund in trust for a *feme*, and direct that, in case of her marriage, it shall be so settled that

[(*d*) *Miles v. Harford*, 12 Ch. D. 691. The shifting clause was, in this case, held to be divisible, and in the events which had happened, not void.]

(*a*) *Marryat v. Townley*, 1 Ves. 102.

(*b*) *Synge v. Hales*, 2 B. & B. 499.

(*c*) *Loch v. Bagley*, 4 L. R. Eq. 122.